

IPSO

21/1/25

Insp. Navesh Malik

Case Information Format

District	
Criminal	☒
Civil	☐

S.NO.	PLAINTIFF / PETITIONER / COMPLAINANT / APPELLANT / DECREE HOLDER ETC. (please fill up all the relevant fields & (*) fields are mandatory)					
1.	* Name of Plaintiff / Complainant etc. <u>STATE</u>					
2.	* S/o, W/o, D/o					
3.	* Address					
4.	* Aadhar Card No.				Pin Code	
5.	* Gender	Male ☒	Female ☒	Other ☐	Nationality	
6.	Date of Birth	DD	MM	YYYY	* Age	Years
7.	Mobile No./Email Id	MOBILE NO.		E-MAIL ID IN CAPITAL LETTERS		
8.	* Act / Section <u>318, 319, 2(2) BNS.</u>					
9.	Valuation of Suit			Court Fee ascertained:		
				Court Fee paid/deposited:		
10.	* Police Station <u>IPSCO CYBER</u>					
11.	* F.I.R. No. & Year <u>538/24</u>					

S.NO.	DEFENDANT / ACCUSED / RESPONDENT / APPELLANT / JUDGMENT DEBTOR ETC. (please fill up the relevant fields)					
1.	* Name of Defendant / Accused etc. <u>VIRAJ PETTA</u>					
2.	* S/o, W/o, D/o <u>RATENDRA R PETTA</u>					
3.	* Address					
4.	* Aadhar Card No.				Pin Code	
5.	* Gender	Male ☐	Female ☒	Other ☐	Nationality <u>INDIAN</u>	
6.	Date of Birth	DD	MM	YYYY	* Age	<u>29 YRS</u>
7.	Mobile No./ Email Id	MOBILE NO.		E-MAIL ID IN CAPITAL LETTERS		

CONNECTED MATTER, IF ANY	CASE DETAILS (viz. CIS REGISTRATION No. / CASE TITLE)	PENDING IN THE COURT OF
PENDING MATTER ☒	CIS REGISTRATION No. <u>STATE/VS VIRAJ PETTA</u>	ANUS KR SENEHA COM PATELA 1200000000
FRESH MATTER ☒	CASE TITLE	

S. No.	ADVOCATE FOR PLAINTIFF / COMPLAINANT / PETITIONER / DECREE HOLDER ETC.			
1.	* Name of Advocate	<u>SANTOSH SENEHA</u>	* Bar Reg. No.	<u>P/1241/SLR</u>
2.	* Address	<u>Chamber Seat Near 100 Patiala</u> <u>1200000000</u>		
3.	* Mobile No / E-mail Id	<u>9799468811</u>	E-MAIL ID IN CAPITAL LETTERS	

Submitted By: -

(Plaintiff / Petitioner / Defendant / Accused / others / Advocate)

51C

**IN THE COURT OF SHRI ANUJ KUMAR SINGH, LEARNED
CJM, PATIALA HOUSE COURT, NEW DELHI**

IN THE MATTER OF:

STATE .

VS. VIRAJ PETTA

S/o RAJENDER R PETTA

FIR No.538/2024

U/s 318/319/61(2) BNSS

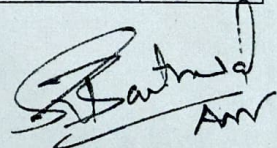
P.S. SPECIAL CELL (IFSCO) CYBER

DATE OF ARREST:12.12.2024

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Filed by:


Santosh Singh Barthwal
Advocate
Near Ch. No. 107, Seat,
Near Joshiji Typist,
Patiala House Courts,
New Delhi-110001
Mob No. 9971468838

New Delhi
Dated: 17.01.2025

JIC
①

**IN THE COURT OF SHRI ANUJ KUMAR SINGH, LEARNED
CJM, PATIALA HOUSE COURT, NEW DELHI**

IN THE MATTER OF:

STATE .

VS. VIRAJ PETTA

S/o RAJENDER R PETTA

FIR No.538/2024

U/s 318/319/61(2) BNSS

P.S. SPECIAL CELL (IFSCO) CYBER

DATE OF ARREST: 12.12.2024

**APPLICATION FOR GRANT OF BAIL ON BEHALF OF ABOVE
NAMED APPLICANT/ ACCUSED VIRAJ PETTA U/S 480 BNSS
ACT.**

MOST RESPECTFULLY SHOWETH:-

1. That the above said accused was arrested on 12.12.2024 and then sent to PC remand and after that he was sent to judicial custody and since then he is behind bars for a period of 38 days which is very much harsh for him in the above said offence which he never done intentionally.

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2. That the above said accused has been wrongly implicated in this case wherein the notice U/s 35(3) and the ground of arrest was made him signed when he was produced before this Hon'ble Court and an objection was made by the counsel regarding the notice and grounds of arrest so the police official made these documents signed outside the court and then made this accused present before the Hon'ble Court which was strongly argued before the court that improper procedure was followed by the investigation official and hiding the procedural aspects of the case the police has wrongly implicated Viraj Petta in this case as he has nothing to do with this offence in any manner whatsoever presented before this Hon'ble Court as he is a poor person and just a victim of circumstances and nothing else remains to keep him behind bar for longer time duration as he has already painfully managed to carry on the custody of such a long time duration of 38 days.
3. That the police wrongfully implicated the present accused in a wrongful case even after knowing that he is

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innocent and if he won't provide them with any other credible information about the case, the accused will be behind the bars for a consideration long time duration, and this is the very condition happening with the accused as the family of the accused is poor and so they do not have money to fulfill the wishes of the police people and so he is behind the bars even after completion of the investigation of the whole case then to he has been harassed by the illegal demands of police officials just to keep him behind the bars and fulfill their illegal demands.

4. That the accused was arrested from Ahmedabad and without carrying any notice or any procedural aspects of the case the police wrongfully took the custody of him and took him to Delhi and presented wrongfully before this Hon'ble Court without signing any documents prior notice to join the investigation or without giving 35(3) B.N.S. Act notice to the accused for the investigation of the case, neither any further guidelines were followed by the police regarding the reasoning of arrest, as the

(4)

Supreme Court in various judgement already given proper guidelines regarding notice and ground of arrest which has to be explained to the accused before his arrest. The accused if given notice then too it is totally manipulated and after thought preparation of the papers of the police officials just to make a strong case against the accused to fulfill the ulterior motive of the police officials in the terms of money.

5. That the applicant is very poor person and citizen of India and permanent resident of Gujarat, Ahmedabad.
6. That the applicant is aged about 29 years and is the only earning members of the family and having old aged ailing sisters and younger brother. :
7. That the applicant previously not involved in any sort of criminal and has nothing to do with the alleged offence.
8. That the applicant is willing to abide by each and every condition which may be imposed upon him while granting him bail.
9. That no useful purpose will be served if the applicant is behind the bar.

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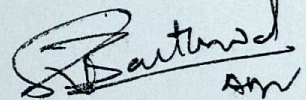
10. That the applicant / accused undertakes to appear before this Hon'ble Court on each and every date of hearing if granted him bail.
11. That the applicant/ accused undertakes to furnish sound surety to the satisfaction of this Hon'ble Court.

PRAYER

It is, therefore most respectfully prayed, that this Hon'ble Court may be pleased to grant bail to the applicant, till the final disposal of the case and in the interest of justice.

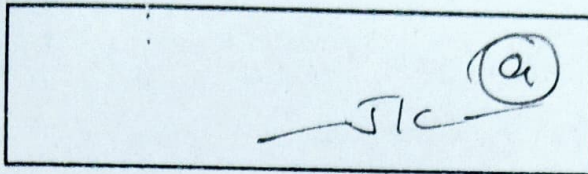
Applicant/Accused

Through:


am

Santosh Singh Barthwal
Advocate
Near Ch. No. 107, Seat,
Near Joshiji Typist,
Patiala House Courts,
New Delhi-110001
Mob No. 9971468838

New Delhi
Dated: 17.01.2025



C.C. No.
FIR No. 538/24
U/S 318, 319, 61(2) B.M.
P.S. Special Cell F-60
DOA 12.12.24

IN THE COURT OF Duty MM Surbhi Sharma MM Patil

Suit / Appeal No. _____ JURISDICTION OF 202

In re :- State

Plaintiff(s) Or Petitioner(s)
Appellant(s) Or Complainant(s)

VERSUS

Yiraj Patta Defendant(s) / Respondent(s) / Accused

KNOW ALL to whom these present shall come that I/ We S/O Rajendra K Patta
R/o 24/9, Satyam Flats Opp Mahan Nagar Bapu Nagar
The above named Accused Khodiyal Road Bapu Nagar
do hereby appoint Ahmedabad
380024.

SANTOSH SINGH BARTHUAL
Near Chamber ADVOCATE
No 107 Seat Near Dohiji
Tyrist P.H.C New Delhi
DI/291-A/02
(997468839)

(herein after called the advocate/s to be my/our Advocate in the above-noted case authorize him:-

To act, appear and plead in the above-noted case in this court or in any other court in which the same may be tried or heard and also in the appellate court including High court subject to payment of fees separately for each court by me/us.

To sign file, verify and present pleadings, appeals cross-objections or petitions for executions review, revision, withdrawal, compromise or other petitions or affidavits or other documents as may be deemed necessary or proper for the prosecution of the said case in all its stages subject to payment of fees for each stage.

To file and take back documents, to admit and/or deny the documents or opposite party.

To withdraw or compromise the said case or submit to arbitration any differences or disputes that may arise touching or in any manner relating to the said case.

To take execution proceedings on paying separate fee.

To deposit, draw and receive money, cheques, case and grant receipts here of Judicial Magistrate (NI Act)-02
do all other acts and things which may be necessary to be done for the progress of the course of the prosecution on the said case. First Floor, Publication Building, Patiala House Court, New Delhi

To appoint and instruct any other Legal Practitioner authorizing him to exercise the power and authority hereby conferred upon the Advocate whenever he may think fit to do so and to sign the power of attorney on our behalf.

And I/ We the undersigned do hereby agree to ratify and confirm all acts done by the Advocate or his substitute in the matter as my/our own facts, as if done by me/us to all intents and purpose.

And I/We undertake that I/ We or my/our duly authorised agent would appear in court and all hearings and will inform the Advocate for appearance when the case is called.

And I/We undersigned do hereby agree not to hold the advocate of his substitute responsible for the result of the said case. The adjournment costs whenever ordered by the court shall be of the Advocate which he shall receive and retain for himself.

And I/We undersigned do hereby agree that in the event of the whole or part of the fee agreed by me/us to be paid to the advocate remaining unpaid he shall be entitled to withdraw from the prosecution of the said case until the same is paid up. The fee settle is only for the above case and above Court. I/We hereby agree that once the fee is paid, I/We will not be entitled for the refund of the same in any case whatsoever and if the case prolongs for more than 3 years the original fee shall be paid again by me/us

IN WITNESS WHERE OF I/We do hereunto set my/our hand to these presents the contents of which have been understood by me/us on this 1/1/25 day of 202.

Accepted subject to the terms of the fees

S. Barthual
Advocate

Yiraj Patta
Client

Yiraj Patta
Client

I identify the Signature/Thumb Impression of the Below Mentioned Person,
Who Has been Signed in my presence. The Client,